

24STCV04536 24STCV04536

County: los-angeles

Division: Civil Law and Motion

Department: 415

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 18, 2026

CASE NUMBER

24STCV04536

MOTION

Motion to Tax Costs

MOVING PARTY

Plaintiff Robert Lindholm and Carolyn Lindholm

OPPOSING PARTY

Defendant Crystal Bergstrom

MOTION

Plaintiffs

Robert Lindholm and Carolyn Linholm ("Plaintiffs") move to strike or tax costs in the memorandum of costs Defendant Crystal Bergstrom ("Defendant") filed. Defendant opposes the motion.

ANALYSIS

Code of Civil Procedure section 1033.5, subdivision (a) sets forth items which are allowable as costs. Such costs must be "reasonably necessary to the conduct of this litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code Civ. Proc., § 1033.5, subds. (c)(2), (3).) "Items not mentioned in [section 1033.5] and items assessed upon application may be allowed or denied in the court's discretion." (Id., subd. (c)(4).)

On a motion to tax costs, "[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized." (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774, internal citations omitted.) "The court's first determination, therefore, is whether the statute expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable." (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131, internal citations omitted.) The objecting party does not meet this burden by arguing the costs were not necessary or reasonable but must present evidence and prove the costs are not recoverable. (Litt v Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224; Seeever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.)

Defendant cannot seek attorney fees by way of a cost memorandum. (See Cal. Rules of Court, rule 3.1702(b) [unless otherwise provided by statute, a noticed motion is required to claim attorney fees]; Hardie v. Nationstar Mortgage LLC (2019) 32 Cal.App.5th 714, 720 [same].) Defendant does not provide the Court with any statutory nor case law authority otherwise. Accordingly, the Court strikes \$116,403.55 in attorney fees from the memorandum of costs without prejudice to Defendant seeking such via a noticed motion.

Under the particular circumstances of this case, the other costs Defendant seeks are proper on their face. As Plaintiffs make no showing those costs are unnecessary or unreasonable, the motion to strike or tax is otherwise denied.

Plaintiffs are to give notice of the Court's ruling and to file proof of service of same.